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Scandal on the Ballot

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Page 24 of the California Voter Information Guide is no place for the faint of heart. There you will find charges that Israel was responsible for the Sept. 11 terrorist attacks, secretly funds Hamas and is currently planning a nuclear strike against the United States. For good measure, there are also links to a buffet of websites featuring odious anti-Semitic, racist and anti-LGBTQ diatribes.

How did this repulsive material end up in the state's official voter materials, posted on a government website and mailed to millions of California voters at taxpayer expense? Because California Secretary of State Shirley Weber allowed an odious fringe candidate for governor to include these vile items in his ballot statement.

Weber's office was clearly aware of the inflammatory language, as the candidate's statement was accompanied by a disclaimer stating that the "views and opinions expressed by the candidates are their own and do not represent the views and opinions of the Secretary of State's office." The other 31 candidates' statements have no such disclaimer.

Weber's office defended themselves by asserting that she is bound by laws that only allow the state to reject candidate statements if they directly reference an opponent. But that is demonstrably untrue, as the Secretary's own website declares that statements "shall be limited to a recitation of the candidate's own personal background and qualifications." Weber's office did not explain how conspiracy theories regarding the 9/11 attacks, the Gaza War or the deployment of a nuclear weapon were related to the candidate's background and qualifications.

The same guidelines said the Secretary of State could disqualify statements if her office raised objections and candidates did not make appropriate changes. There is no record of the Secretary's office raising any such objections. They were apparently satisfied that the disclaimer that Weber and her staff did not share these sentiments was sufficient.

Members of the Jewish Legislative Caucus, led by Assemblymembers Jesse Gabriel (D-Encino), the caucus chair, and Gail Pellerin (D-Santa Cruz), a longtime county election official, condemned the inclusion of the incendiary references and have promised to carry legislation to address a problem that should not require legislation to address. Weber will almost certainly support their proposed remedy, but as of this writing, the unacceptable language remains on her office's website and every California household with a registered voter inside will soon have this filth inside their homes.

Gabriel was appropriately incensed. "We were outraged to learn that the Official Voter Information Guide for the California Primary ... includes antisemitic conspiracy theories and links to websites with horrific racism, homophobia and misogyny," he said. "This is dangerous, deeply offensive and antithetical to California's proud tradition of standing up to hate."

Several Jewish community groups expressed their anger as well, including the Anti-Defamation League, the Jewish Federation of Orange County, the Jewish Community Action Network (JCAN) and the Israeli American Council. (JCAN leader Ilana Meirovitch correctly questioned whether the secretary of state's office would have permitted a discriminatory statement against a different minority group.) And the coalition has justifiably requested an explanation from Weber as to how such a misguided decision was made in the first place.

None of this should be confused with a circumvention of the First Amendment. A bigoted individual has every right to run for office and to peddle his hatred, both in the public square and its digital equivalent. But those rights to free speech do not entitle him access to a government website or the ability to use public tax dollars to spread his

detestable claims. Weber owes the voters of California an explanation for her carelessness and a full investigation into how these decisions were made – and by whom. A predictable pseudo-apology and support for a bill that should not have been necessary if not for her abdication of responsibility is not good enough.

Similarly, it would be tempting for unannounced presidential aspirant Gavin Newsom to ignore this mess and avoid stoking the fires of a political party now deeply divided over Israel. But a gubernatorial spotlight is a necessary part of the solution, to make sure this debacle receives the attention it deserves.

Dan Schnur is the U.S. Politics Editor for the Jewish Journal. He teaches courses in politics, communications, and leadership at UC Berkeley, USC and Pepperdine. He hosts the monthly webinar "The Dan Schnur Political Report" for the Los Angeles World Affairs Council & Town Hall. Follow Dan's work at www.danschnurpolitics.com.

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